

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 09/16/2026

Case #	Case Name	Tentative
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORY 17.1 (ROA 115) Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further respond to Form Interrogatory 17.1. (ROA 115.) Petitioner propounded the subject discovery on Respondent on 10/3/25 and received responses on 11/17/25. (ROA 67, Friedman Decl., ¶¶ 2-3.) On 12/24/25, Petitioner sent a meet and confer letter addressing the deficiencies in the subject discovery, proposing a mutual extension of deadlines to respond to discovery and file this motion, and requesting confirmation of the agreement for extensions. (Id. at ¶ 4; ROA 294, Duff Decl., ¶ 5.) Respondent did not respond or otherwise confirm an agreement to the extension. (ROA 309, Friedman Decl., at ¶ 8.) Consequently, Petitioner timely filed the instant motion on 1/2/26. (Id. at ¶ 9.) On 1/5/26, Respondent served a supplemental response to Form Interrogatory 17.1. (Duff Decl., ¶ 7, Ex. C.) Based on the foregoing, the motion to compel further response to Form Interrogatory 17.1 is DENIED as moot.

		The court DENIES both parties' request for monetary sanctions as it appears that issue raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer. Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. Sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 432-433.) Petitioner gave Respondent less than four business days, during the busy holiday season, to respond. Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, Respondent failed to offer any justification for the insufficiency of the initial response to Form Interrogatory 17.1. Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification. Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).) Counsel for Petitioner shall serve notice of this ruling.
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (ROA 111)

		Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further respond to Requests for Admission. (ROA 111.) Petitioner propounded the subject discovery on Respondent on 10/3/25 and received responses on 11/17/25. (ROA 75, Friedman Decl., ¶¶ 2-3, Ex. A-B.) On 12/24/25, Petitioner sent a meet and confer letter addressing the deficiencies in the subject discovery, proposing a mutual extension of deadlines to respond to discovery and file this motion, and requesting confirmation of the agreement for extensions. (Id. at ¶ 4, Ex. C; ROA 296, Duff Decl., ¶ 5, Ex. A.) Respondent did not respond or otherwise confirm an agreement to the extension. (ROA 321, Friedman Decl., at ¶ 8.) Consequently, Petitioner timely filed the instant motion on 1/2/26. (Id. at ¶ 9.) On 1/5/26, Respondent served supplemental responses to the subject requests for admission. (ROA 296, Duff Decl., ¶ 7, Ex. B.) Based on the foregoing, the motion to compel further response to Requests for Admission is DENIED as moot. The court DENIES both parties' request for monetary sanctions as it appears that most of the issues raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer. Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. It is not an abuse of discretion for the court to find that sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 432-433.) Here, Petitioner gave Respondent less than four business days, during the busy holiday season, to respond. Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, Respondent failed to offer any justification for the insufficiency of the initial response to requests for admission. Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification.
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		Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).) Counsel for Petitioner shall serve notice of this ruling.
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 107) Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further respond to Requests for Production of Documents. (ROA 107.) Petitioner propounded the subject discovery on Respondent on 10/3/25 and received responses on 11/17/25. (ROA 87, Friedman Decl., ¶¶ 2-3, Ex. 1-2.) On 12/24/25, Petitioner sent a meet and confer letter addressing the deficiencies in the subject discovery, proposing a mutual extension of deadlines to respond to discovery and file this motion, and requesting confirmation of the agreement for extensions. (Id. at ¶ 4, Ex. 3; ROA 298, Duff Decl., ¶ 5, Ex. A.) Respondent did not respond or otherwise confirm an agreement to the extension. (ROA 311, Friedman Decl., at ¶ 8.) Consequently, Petitioner timely filed the instant motion on 1/2/26. (Id. at ¶ 9.) On 1/5/26, Respondent served supplemental responses to the subject requests for admission. (ROA 298, Duff Decl., ¶ 7, Ex. B.) Based on the foregoing, the motion to compel further response to Requests for Production of Documents is DENIED as moot. The court DENIES both parties' request for monetary sanctions as it appears that most of the

		issues raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer. Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. It is not an abuse of discretion for the court to find that sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 432-433.) Here, Petitioner gave Respondent less than four business days, during the busy holiday season, to respond. Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, Respondent failed to offer any justification for the insufficiency of the initial response to requests for production. Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification. Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).) Counsel for Petitioner shall serve notice of this ruling. [Motion Type]
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (ROA 103) Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further

respond to Special Interrogatory Nos. 4, 6, 7, 8, and 16. (ROA 103.)

Petitioner propounded the subject discovery on Respondent on 10/3/25 and received responses on 11/17/25. (ROA 95, Friedman Decl., ¶¶ 2-3, Exs. 1-2.)

On 12/24/25, Petitioner sent a meet and confer letter addressing the deficiencies in the subject discovery, proposing a mutual extension of deadlines to respond to discovery and file this motion, and requesting confirmation of the agreement for extensions. (Id. at ¶ 4, Ex. 3; ROA 300, Duff Decl., ¶ 5, Ex. B.) Respondent did not respond or otherwise confirm an agreement to the extension. (ROA 317, Friedman Decl., at ¶ 8.) Consequently, Petitioner timely filed the instant motion on 1/2/26. (Id. at ¶ 9.)

On 1/5/26, Respondent served a supplemental response to Special Interrogatory No. 16 only. (ROA 300, Duff Decl., ¶ 7, Ex. C.)

Special Interrogatory No. 4

Special Interrogatory No. 4 asks three distinct questions, as follows:

Please describe all repairs YOU made to the PROPERTY located at 35306 Camino Capistrano.

If YOU took steps to have repairs made to 35306 Camino Capistrano that were not completed, please describe the efforts YOU took to have such repairs made.

If YOU took steps to have repairs made to 35306 Camino Capistrano that were not completed, please explain why the repairs were not completed.

Special Interrogatory No. 4 is clearly compound in that it asks three distinct questions. Petitioner's argument that the interrogatory is not compound because it relates to a single subject is not persuasive. Though each sentence addresses repairs made to a single property, they seek information regarding three different subjects. Specifically, this single interrogatory seeks to elicit (1) a description of all repairs that were successfully made, (2) a description of all unsuccessful efforts to have repairs completed, and (3) an explanation as to why any repairs were not completed.

The motion to compel further response to Special Interrogatory No. 4 is **DENIED**.

Special Interrogatory Nos. 6 and 7

Special Interrogatory No. 6 asks Respondent to state the "DATE and AMOUNT" of each distribution made to Petitioner.

Special Interrogatory No. 7 asks Respondent to state the "DATE and AMOUNT" of each distribution made to other beneficiaries.

Respondent responded to both on the ground that the question is "compound." This is the type of hypertechnical objection that was disapproved of in *Clemente v. Alegre* (2009) 177 Cal.App.4th 1277 ("*Clemente*"). In *Clemente* the court recognized a treatise that stated the rule against compound questions (i.e., Code of Civil Procedure § 2030.060(f)) "should probably only apply where *more than a single subject* is covered by the question." (Id. at p. 1291.)

The court finds that the objection on the ground that these interrogatories are "compound" is not warranted. Moreover, pursuant to Code of Civil Procedure section 2030.230, Respondent has the option of responding to these interrogatories by reference to the spreadsheets she has prepared containing the requested information.

The motion to compel further responses to Special Interrogatories 6 and 7 is **GRANTED**.

Special Interrogatory No. 8

Special Interrogatory No. 8 reads as follows: "State all facts in detail that led YOU to tell PETITIONER on or around January 15, 2024, that he was spending his inheritance too quickly."

Respondent's response reads as follows; "He was burning through too much money and could not support the need."

The court agrees with Petitioner that said response is not "complete and straightforward as the information reasonably available to the responding party permits." The interrogatory requests facts to support Respondent's contention that Petitioner was spending too much. The response merely restates that contention. In his separate statement in opposition (ROA 339), Respondent acknowledges that there are supporting facts which are set forth

in a spreadsheet that details the amounts and time frames of Petitioner's spending. (Id. at 8:17-22.)

The motion to compel further response to Special Interrogatory No. 8 is **GRANTED**.

Special Interrogatory No. 16

Petitioner acknowledges that a supplemental response to Special Interrogatory No. 16 was made and does not address any remaining deficiencies. Thus, the motion to compel further response to Special Interrogatory No. 16 is **DENIED as moot**.

Monetary Sanctions

The court **DENIES** both parties' request for monetary sanctions as it appears most of the issues raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer.

Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. It is not an abuse of discretion for the court to find that sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432-433.) Here, Petitioner gave Respondent less than four business days, during the busy holiday season, to respond.

Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, both parties could have continued to efforts to meet and confer after the motion was filed.

Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification.

Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).)

		<u>ORDERS</u> Within 10 days of notice of this ruling, extended for method of service, Respondent shall serve further responses to Special Interrogatory Nos. 6, 7, and 8. Counsel for Petitioner shall serve notice of this ruling.
01415299	Campbell - Trust	TENTATIVE RULING Case: Campbell - Trust 01415299 Calendar No: 4 Date: 09/16/26 <u>MOTION TO COMPEL DEPOSITION (ROA 105)</u> Petitioner Daniel Campbell ("Petitioner") moves to compel the deposition of Respondent Sharon A. Campbell ("Respondent"). (ROA 105.) On 10/10/25, Petitioner served Respondent with a Deposition Subpoena for Personal Appearance. No documents were requested. (ROA 105, Porrazzo Decl., ¶ 6, Ex. C.) Three days before the scheduled deposition, Respondent electronically served objections based on standing and privacy. (Id. at ¶ 8, Ex. E.) On 3/25/26, the court denied Respondent's motion for judgment on the pleadings and found that Petitioner has standing. (ROA 153.) On 5/13/26, the court denied Respondent's five motions to quash subpoena and found that lack of standing is not a proper objection to discovery. (ROA 178.) Yet, in opposition to this motion, Respondent continues to assert a lack of standing as grounds for objection to the deposition subpoena. Respondent's objections on the grounds of attorney-client privilege and privacy are premature, as Petitioner has yet to ask Respondent a question. Respondent may raise objections to specific questions asked at the deposition. To the extent Respondent refuses to answer any questions at the deposition, Petitioner may file a motion to compel answers pursuant to Code of Civil Procedure section 2025.480 after meeting and conferring. The mere anticipation of questions that may invade Respondent's privileges or privacy rights is not grounds to avoid a deposition altogether.

		The motion to compel is GRANTED. Counsel shall promptly meet and confer to schedule Respondent's deposition. Said deposition shall take place within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. The court finds no substantial justification for the opposition to this motion. Pursuant to Code of Civil Procedure section 2025.450(g), the court imposes reasonable fees and costs in the amount of \$4,620.00 jointly and severally against Respondent and her counsel, Mr. Shaver, payable within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to give notice of this ruling.
01341801	Friedman - Probate	TENTATIVE RULING Case: Friedman - Probate 01341801 Calendar No: 5 Date: 09/16/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 58) Attorney Charles K. Mills seeks to be relieved as counsel for Executor Barry Friedman. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not filed and served all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, Counsel has not filed the Order Granting Attorney's Motion to Be Relieved (MC-053), though the form has been served. (ROA 66.) All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. (Cal. Rules of Court, rule 3.1362(d).) Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served

		on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties.” The client is the Executor of the Estate of Joan C. Friedman, and the court’s records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.) Further, pursuant to Probate code section 10953(c), the court might order Mr. Mills to prepare an accounting. If the client appears at the hearing, the motion <u>may</u> be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: